



POLICE DEPARTMENT

July 13, 2011

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Stella Ibanez
Tax Registry No. 931943
Police Service Area 6
Disciplinary Case Nos. 83815/08 & 85737/09

The above-named member of the Department appeared before me on April 4, 2011, April 6, 2011, April 7, 2011 and May 6, 2011, charged with the following:

Disciplinary Case No. 83815/08

1. Said Police Officer Stella Ibanez, while assigned to the 47th Precinct, on or about September 14, 2007, at about 0330 hours, while off-duty [sic]¹, upon responding to a fight resulting in one participant suffering physical injury requiring medical attention in or about the vicinity of 942 McLean Avenue, Yonkers, New York, while aiding and abetting and acting in concert with another uniformed member of service, known to the Department, and with intent to obtain a benefit or deprive another person of a benefit, committed an act related to her office but constituting an unauthorized exercise of her official functions, knowing that such act was unauthorized and knowingly refrained from performing a duty which was imposed upon her by law or was clearly inherent in the nature of her office, in that:

A. Said Police Officer, upon learning that one or more of the participants of the fight and the perpetrator of an alleged assault was an off-duty uniformed member of the Department, said Police Officer allowed permitted said member to leave the scene of the incident without further questioning, investigation, or recording any identifying information about said uniformed member;

B. Said Police Officer, upon the arrival of the 47th Precinct Patrol Supervisor to the scene, did conceal her knowledge of said off-duty uniformed member's participation

¹ This should be "on-duty."

in the assault, said member's identity, and said member's status as an off-duty New York City Police Officer,

C Said Police Officer, subsequent to her departure from the scene, did fail and neglect to prepare any reports regarding the incident, and

D Said Police Officer, between about September 14, 2007 and about November 16, 2007, met with other uniformed members of the Department involved in the September 14, 2007 incident to discuss and to agree to create a false story about the incident, and to deny their knowledge of the uniformed member's participation in the fight

P G 202-21, Page 1, Paragraphs 6 & 8 – DUTIES AND RESPONSIBILITIES
P G 203-05, Page 1, Paragraph 4 – PERFORMANCE ON DUTY – GENERAL
P G 203-10, Page 1, Paragraph 5 – GENERAL REGULATION
N Y S Penal Law § 195 00 (1) & (2) – OFFICIAL MISCONDUCT

2 Said Police Officer Stella Ibanez, while assigned to the 47th Precinct, on or about September 14, 2007, having become aware of an unusual occurrence involving uniformed members of the Department at about 0330 hours, while off-duty [sic]², in or about the vicinity of McLean Avenue, Yonkers, New York, and having become aware of an allegation of corruption or serious misconduct against on or more uniformed members of the Department, wrongfully did fail and neglect to notify the Internal Affairs Bureau, Command Center, as required

P G 207-21, Page 1, Paragraph 1 – COMPLAINTS

Disciplinary Case No 85737/09

1 Said Police officer Stella Ibanez, while assigned to Viper Unit #1, on or about December 1, 2008, while on duty, wrongfully and without just cause did utilize a Department computer for matters unrelated to the official business of the Department or the City of New of New York, in that said Police Officer obtained confidential information about a personal acquaintance

P G 203-06, Page 1, Paragraph 15 – PERFORMANCE ON DUTY-
PROHIBITED CONDUCT
GENERAL REGULATIONS
P G 219-14, Page 1, Paragraph 2 – DEPARTMENT COMPUTER
SYSTEMS – DEPARTMENT PROPERTY

² This should be 'on-duty'

The Department was represented by David Green, Esq , Department Advocate s Office, and the Respondent was represented by Marvyn Kornberg, Esq

The Respondent, through her counsel entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review

DECISION

Disciplinary Case No 83815/08

Respondent is found Not Guilty of Specification No 1 Subdivisions A and B
Specification No 1, Subdivision C, is dismissed As to Specification No 1, Subdivision D, the Respondent is found Guilty in Part, with the
Procedures 202 21 and 203 05 dismissed

The Respondent is found Guilty of Specification No 2

Disciplinary Case No 85737/09

Respondent having pled guilty is found Guilty of Specification No 1

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Police Officer Jordan Castro, Police Officer Jeffrey Alicea, Police Officer Roubens Exume and Police Officer Michael McGhee, as witnesses

Police Officer Jordan

Castro has served with the Department for almost five years and is currently assigned to the 25 Precinct. In September 2007, he was assigned to the 47 Precinct as a probationary police officer. At the time, he was friendly with Alicea, who was senior officer in that precinct. He also knew the Respondent, who was Alicea's partner.

On September 13, 2007, he worked from 10 00 p.m. to 6 35 a.m. the following morning. His partner was Police Officer Roubens Exume, who was also a probationary officer at the time. He had been assigned to a foot post and called Alicea to pick him up for his meal break. Alicea and the Respondent pulled up in their unmarked car and picked up Castro and Exume. Exume took a nap in the car. At some point the vehicle came to a stop. He believed someone had flagged them down. He could not recall if this person was male or female. The person and Alicea, Castro said, had a conversation. Shortly thereafter, Alicea said, "Oh shit, everybody out" and they all exited the vehicle.

According to Castro, all four officers made a "beeline" for the place where a commotion was going on, which was across the street from where the car had stopped. He said there were more than five, and maybe more than ten, people involved. Castro said all four of them went separate ways. He said he went directly to where there was a white man (later identified as Cummins) on the ground who was bleeding. There were two females in the crowd yelling and who were concerned about his injuries.

Castro stated that Exume went toward a black male they later learned was a member of this Department, Police Officer Michael McGhee. Castro did not notice any other black males in the vicinity. Castro said that McGhee seemed hostile and was making a lot of noise and flailing his arms. He saw Exume bend McGhee over the hood

of another vehicle on the street and attempt to handcuff him. McGhee was not being cooperative, so Castro said he rushed over and assisted. Castro did not know why Exume had decided to handcuff McGhee.

Castro said that he and Exume started to walk McGhee over to their police car, which was across the street. About midway, McGhee began to protest, saying he had been trying to break up the fight and that he was on the job. They retrieved his ID card from his pocket and Castro said he compared it to his own to make sure it was real. Exume, he said, told him to wait with McGhee and Exume went over to speak with Alicea. Castro estimated that he was 30 feet away from Alicea at that time.

Castro said he watched Exume have a conversation with Alicea which lasted about a minute. He did not know where the Respondent was and he did not see her at that time. He was not sure if the ambulance had arrived by then but he did know that the Patrol Supervisor, Sergeant Cerny, had not yet arrived. The Yonkers Police Department (YPD) had not arrived yet either.

After Exume returned from his conversation with Alicea, he uncuffed McGhee and told him to 'get out of here, or something to that effect'. McGhee left the scene. Castro said he asked Exume why he had released McGhee and Exume said that Alicea had told him to.

Castro said everyone seemed to arrive at once after that. He said he thought the ambulance came first, then YPD, then the patrol sergeant. He heard a YPD officer joke with Alicea and then said they (YPD) would take care of the matter. He did not know where the Respondent was at that time. He saw Cerny's driver, Police Officer Kick, go over to Alicea and have a brief conversation which he did not hear. He heard Alicea tell

Cerny that the situation was an "aided" and that "Yonkers [police]" would take care of it. He did not have any conversations nor did he see Cummins being placed in the ambulance.

Castro said that back in the car after the incident, Alicea made a comment that he (Alicea) could not believe that McGhee had "cold cocked" Cummins. He believed that someone in the car said something about the Department now "hiring perps." Castro said that his comment was that he could not believe that McGhee was in a bar at 3:00 a.m. with his firearm. Castro stated that he had felt the gun with the back of his hand while he was handcuffing him.

Sometime after that day, while he was off-duty, Castro received a telephone call from Alicea. Alicea reminded him about the Yonkers incident. He said that someone was making a "big stink" about it and he wanted to make sure everyone was on the same page. Alicea, he said, recounted the story of what occurred. Castro said he interjected the part of the story about handcuffing McGhee and he said that Alicea told him he did not think it was a good idea to mention that McGhee officer.

Castro said he pointed out to Alicea that witnesses had seen him take McGhee's ID card and compare it to his own ID card and there was no way they could say they did not know he was a police officer. Castro said that Alicea responded by saying that there was a greater chance of getting in trouble if they admitted knowing that McGhee was a police officer and that they should omit that part of the story.

Castro testified that Alicea then instructed him to give the same information to Exume. He said he called Exume and told Exume that Alicea wanted him to tell him something but he did not want to do it. Exume asked what was at issue and, Castro said,

he told Exume that Alicea did not want them to be one hundred percent honest about what had happened. Exume asked him if he was going to do that and Castro claimed he said, "No." Exume then called Alicea.

The next day, for the first time, he was partnered with Alicea. The subject came up again during that tour.

Sometime after that, there was a meeting at the 47 Precinct station house about the incident. Present were Castro, Alicea, Exume, the Respondent and the Patrolmen's Benevolent Association (PBA) delegate, John Peters. Peters advised them that there was an investigation about the incident in Yonkers. He told them that if the Internal Affairs Bureau (IAB) or YPD wanted to speak to them, their position should be that they were not declining to cooperate but that they were not volunteering a statement at that time.

Later, there was a follow-up meeting with the four officers involved in the incident. At this meeting, Peters told Castro to leave because no one had identified him as being at the incident. Castro said he left and walked to his foot post. When he got to his foot post, he received a call on his cell phone that Peters wanted to speak to him so he walked back to the precinct. When he got there, Peters told him that they were going to provide his name as one of the officers who were at the Yonkers incident.

Sometime after that, he and Exume met with an attorney. They told the attorney what happened and he told them to remember what they had said and to tell the truth. After that, he received a call and, as a result, he met with Lieutenant Gonzalez of IAB.

On cross-examination, Castro agreed that he was in the car with the Respondent when the car stopped. Someone came over to the car but he did not recall exactly what

was said. He could not clearly see what was going on because the car's rear windows were tinted, it was dark out, and the person who came to the car was blocking his view.

When he got out of the car, he saw a tall white male, Cummins, on the ground near a person he believed to be the bouncer. He did not see anyone strike anyone. He went over to Cummins and he did not know where exactly where the Respondent was but she was about seven feet off to his left. Exume, he said, went to McGhee who was about ten feet away. He looked over and saw Exume wrestling with McGhee, so he left Cummins and went over to help Exume. After McGhee was handcuffed and as they moved him across the street to their car, McGhee said he was "on the job." He did not know where the Respondent was at that time, explaining, "For some reason her presence at the scene doesn't stand out to me."

After that, Exume retrieved McGhee's ID card and handed it to Castro. Castro said he compared it to his ID card and found it to be real. Exume, Castro said, went to "consult with Alicea. At that time, Castro said, he felt a firearm in McGhee's waistband - = - to it

Castro testified that Exume had a conversation with Alicea which he did not hear. He did not know where the Respondent was at this time. Exume, he said, returned and, without saying anything, uncuffed McGhee. At that point, Castro said, he stated to Exume, "Just like that you're letting him go," and Exume told him that Alicea had said he should do that.

After the incident, when they were back in the police car, someone in the front of the car (Alicea or the Respondent) stated that they could not believe that the Department "is hiring perps." While Castro could not remember if there was any discussion about

letting McGhee go, it was stipulated that, in 2007, he told IAB that there was no such discussion

Castro acknowledged that he and Alicea had a conversation on the phone after the incident. At some point after that conversation, Castro, Exume, Alicea, the Respondent and Peters met in the 47 Precinct. During this meeting, Peters advised the officers that they should cooperate with the investigation but not volunteer information on their own. Castro said he and everyone else just "shook their head" in response to what they were told. Castro said Peters did not state where he was getting his information from. A few days after this meeting, Castro met with his attorney. A week or so later, IAB picked up Castro from his parents' house. The same day, Castro also spoke with YPD.

Castro testified that neither his attorney nor Peters told him to notify IAB regarding the incident. Castro stated the first person to know about Alicea asking him to lie was Exume. He further said the Respondent had no part in trying to fabricate a story regarding the incident. In fact, Castro said, he never had a conversation with the Respondent regarding this incident. Moreover, Castro said that Peters also did not ask him to lie about the facts of the incident. Lastly, Castro said that on the night of the incident, as they were driving away from the scene, they discussed the incident vaguely, but none of the officers mentioned whether McGhee had committed a crime.

Police Officer Jeffrey Alicea

Alicea has been employed by the Department for approximately ten-and-a-half years and is currently assigned to the Brooklyn Court Section. He worked at the 47

... 2001 until late 2007. His last steady partner was the Respondent, who

he worked with for about three years. He had, and still has, a social relationship with the Respondent.

On September 14, 2007, he was the operator of a tan unmarked police vehicle and working in the Conditions Unit. He and the Respondent were wearing a modified uniform consisting of "cargo pants with a polo shirt." He and the Respondent picked up Exume and Castro to take them to get a meal at about 3:00 a.m. While driving westbound on McLean Avenue in Yonkers, he stopped the vehicle because he observed a commotion, a small crowd in front of a bar with some pushing and shoving. He saw a black male (McGhee) "sucker punch" a white male (Cummins). Explaining what he meant by sucker punch, Alicea stated that McGhee hit Cummins on the side of the head while he was facing elsewhere. McGhee went down with the punch.

Alicea testified that he exited the vehicle, crossed the street and went over to the black male and grabbed him. He then passed him off to Castro and Exume, who handcuffed him, and he (Alicea) went over to handle the rest of the situation and disperse the crowd. The Respondent, he testified, went to aid the Cummins.

At some point, Alicea had a conversation with someone he believed to be the bouncer from the bar. That person advised him that the McGhee was an off-duty member of the service. Additionally, Castro or Exume, he could not recall which one, advised him that he had checked McGhee's ID card and McGhee was indeed an off-duty police officer. He advised them to "cut him loose." He said he did not believe a crime had been committed. He also stated that he observed Cummins' condition and Cummins had a cut to his right eye and that he was bleeding from the area of his eyebrow. Alicea said he looked dazed. Alicea stated that McGhee did not appear to be injured.

Explaining why he did not believe a crime had been committed, Alicea stated that he had responded to numerous bar incidents and that, normally, he would just separate the participants and send them on their way

YPD arrived on the scene and Alicea stated that he told them there had been a bar fight and that he had taken care of it. Cerny also arrived at the scene with Kick. Alicea stated that he told Cerny that there had been a bar fight. He did not tell Cerny about his observation. Alicea did not recall where the Respondent was at the time of this conversation, nor did he recall where she was during his conversation with YPD. Alicea stated that the Respondent had been aiding Cummins but he did not know where she was all of the time. He did not have a conversation with the Respondent at the scene.

Alicea stated that he was at the scene for 30 to 45 minutes and that he had called for an ambulance and YPD. He said he and the other members of this Department left when YPD arrived. He said there was some conversation in the car about the fact that McGhee had put them "in this spot." He did not recall if anyone stated that the man they let go was a police officer. Although he recalled none of the details, such as where it occurred, Alicea did recall speaking to the Respondent about the fact that McGhee was member of the service sometime before the end of that tour. He did not recall her making any response.

About a week after the incident, he received a call from Peters, who asked him if he had been in a fight in Yonkers, to which he responded in the negative. A few minutes later Peters called again to see if he knew anything about a fight in Yonkers. He advised Peters of the details. Peters also told him that YPD would be coming to the precinct.

When YPD arrived, Alicea was advised that they (Alicea and the other officers involved in the incident) were not going to make a statement at that time. He did not confer with an attorney at that point. He did advise the Respondent about this but did not recall when this occurred.

Alicea had another conversation with the Respondent in which he told her that he had spoken to Peters and that an inquiry was being made into the incident. He stated that he told her that it would be best if they did not say that they knew that the man they let go was a member of the service and she agreed. He did not recall when that occurred. Alicea acknowledged that he spoke to Castro and Exume on the telephone about the same subject. He said the conversation with the Respondent was at about the same time.

On cross-examination, Alicea agreed that he had no doubt that he saw McGhee strike Cummins. He also recalled that McGhee was the only black man in the area. He stated that when they got out of the car, he and the Respondent headed towards McGhee. He said it was within "seconds" that he was with McGhee and that the Respondent went toward Cummins. After McGhee was put in handcuffs, he was brought across the street to the police car. Alicea noted that the police car was on the south side of the street while the Respondent was with Cummins on the north side of the street. He said he was first informed that McGhee was a police officer while he was engaged in crowd control. He said that the last time before that that he had seen the Respondent, she was aiding Cummins. He agreed that the Respondent was not with him at the time he ordered McGhee's release and he stated that she was with Cummins at that time.

Alicea agreed that, when Cerny arrived, he had a conversation with him and did not tell him the whole truth. He agreed that he did not discuss the issue with the

Respondent at that time He did not recall if he saw the Respondent at the time the ambulance arrived

With regard to the conversation in the car he recalled that there was a discussion about McGhee putting them in a bad spot He said he believed that the fact that McGhee was a police officer was mentioned but said he was certain that no one said anything about the Department "hiring perps "

Going over the call from Peters, Alicea said he was told that "they" were looking into a fight on McLean Avenue No advice was given to him at that time and, after that, he had the telephone conversations with Castro and Exume He agreed that he told them to lie but also noted that no one did so

Alicea stated that when YPD came to speak to him, Peters told him not to make any statements and he (Alicea) advised YPD so A few days later, he was called to IAB where he was represented by an attorney who represented all of the officers involved That attorney advised IAB that they were not going to make a statement at that time He was assigned his own attorney after that

He was contacted by the Westchester County District Attorney's (DA's) office and his attorney represented him when he went there He said his statements to the DA were the same as the testimony he gave at this proceeding Alicea said that he and the Respondent were arrested in Westchester County After they took pleas in their cases he testified in a criminal trial there (apparently referring to McGhee's criminal trial)

Police Officer Roubens Exume

Exume testified that he was working with his partner, Castro, on the night tour of September 13 to 14, 2007. He said that at about 3:00 a.m., the Respondent and Alicea picked them up in an unmarked vehicle, Exume described himself as "tagging along" with Castro, who was going to get a meal. He said he fell asleep in the car. He was awakened when he heard the car door slam and he saw that everyone else had gotten out of the vehicle. He stated that he saw Castro go towards a man on the ground while the Respondent and Alicea went further up the block.

He said he went to see if Castro needed him to attend to the man who seemed to be injured (Cummins). He said he asked "someone nearby" what had happened. "The gentleman became irate," Exume asserted and "me and Castro, we had to place handcuffs on him." He learned that the man they had handcuffed was McGhee. When asked what the Respondent was doing, Exume said that he was too preoccupied to know.

As he was being handcuffed, McGhee told them that he was "on the job" and an officer from the 44 Precinct. Exume saw that he had a Department ID card and shield. He moved closer to the police car where there was better lighting. Castro examined the ID card and pulled out his own ID card for comparison. Exume testified that, at that

that they had to inform the "senior officers," referring to the Respondent and Alicea.

Exume said they were across the street standing in front of the club and that they may have been talking to another man dressed all in black, who may have been the bouncer. He advised Alicea that the man they had handcuffed was a police officer. Exume said that the Respondent was about four or five feet away at that time. When

asked if the Respondent had any reaction to his comment, Exume stated "No reaction whatsoever"

Alicea, he testified, did react. Exume stated, "Officer Alicea informed me to remove the cuffs because he is an officer. I said, well, did anybody ID him as the guy that was fighting?" He said, no, nobody ID'd him. "You can remove the cuffs and let him go." Alicea, he said, then went over to the Respondent and had a conversation which he did not hear. Exume stated that when he uncuffed McGhee, McGhee went over to Alicea and had a conversation which he did not hear. The Respondent was in the same area.

After the incident, the officers went back into their vehicle. Exume testified that at that point in time "Alicea was saying how the officer I just uncuffed and let go was indeed involved in the fight and punched the guy in the back of the head. And [the Respondent's] reaction was oh, really, yeah, uh-huh."

Exume clarified that "She mumbled as if she agreed, yeah, uh-huh, uh-huh." He further stated that other than that sound ("uh-huh") the Respondent said nothing. There was no further conversation in the vehicle about the incident.

At some time after the incident, Castro called him and requested that he call Alicea, which he did. Alicea told him that if he were asked if the person they let go was an officer, he was to say that he was not an officer. He did not speak with the Respondent about this.

There was, he said, an incident where he spoke about this issue in the presence of the Respondent. He stated that one night, about two weeks after the incident, while he was on patrol, the Respondent and Alicea picked him up while he was on solo foot patrol.

Both officers were in the vehicle when Alicea spoke with him. Alicea did all the talking. Describing the Respondent, he stated, "She was just there."

On cross-examination, he stated that he was sleeping when the car stopped on McLean Avenue. He was awakened when the door slammed shut. Everyone else was out of the car at that point and he saw Alicea standing in front of the bouncer. He said the Respondent and Castro also went in the same direction. He too went in the same direction with the others, who were about 15 or 16 feet ahead of him. Castro, he said, went to Cummins. Castro was about 25 feet from the bouncer and he (Exume) went in that direction. The Respondent was standing not too far from Alicea and about 20 feet away from Exume.

Exume stated that he went to McGhee, who was about five feet from Cummins. Exume testified that McGhee said he had nothing to do with the situation and was very irate. McGhee started flailing his arms and "bladed" his body. Exume stated that at some point, he decided to handcuff McGhee and Castro assisted him. McGhee stated that he was "on the job" and explained to Exume that he was a police officer from the 44 Precinct. Exume stated that he did not find a gun on McGhee.

Exume agreed that there came a point in time when he went to Alicea, told Alicea that McGhee had identified himself as a police officer and that he asked Alicea if anyone had identified McGhee as the person who had assaulted Cummins. On examining the transcript of his official Department interview, Exume agreed that he had not told the investigators at that interview that he had asked Alicea if anyone had identified McGhee. He also agreed that at that interview he said he told Alicea that McGhee denied involvement in the incident.

Exume also agreed that at the interview he had stated that he had told Alicea that he had spoken to some people at the scene and that they confirmed that McGhee had not been fighting. Exume agreed that his earlier statement was the truth. He also agreed that at that point, Alicea ordered McGhee released and that he, in the company of Castro, took McGhee across the street and released him.

The Respondent, he said, was standing not too far from Alicea and Cummins was being assisted by two females. Exume asserted that the Respondent was not aiding Cummins and that he never saw her do so. Exume stated that he did not assist Cummins into the ambulance.

Exume agreed that he never told the sergeant who arrived at the scene that he had handcuffed a police officer and then released him. He did not report to anyone that a police officer had taken an aggressive stance towards him.

Exume stated that once they were back in the car, Alicea stated that McGhee had punched the victim in the back of the head. He agreed that, at that point, he learned that Alicea had lied to him. He did not report this when he got back to the station house.

Exume agreed that he had testified that in the car, after Alicea made his statement, the Respondent uttered, "Uh huh." When confronted with his official Department interview, Exume agreed that, at that time, he said that after Alicea made the statement he had said that no one said anything.

Exume agreed that after the incident, he called Alicea at Castro's suggestion. He testified that Alicea told him that if anyone asked about the incident, he was to say that the person he released was not a police officer and that the identification he had seen was a driver's license. Exume stated that he told Alicea that he agreed.

At some point after that, YPD came but he stated that he had been advised not to speak to them without a lawyer. Exume asserted that he had not had a conversation in the station house with the Respondent, Castro and Alicea about the incident.

Exume agreed that he did not tell IAB about an incident in which Alicea and the Respondent came up to him while he was on patrol. He said he had told his lawyer about that incident before he was questioned by IAB. Up until his testimony at this proceeding, Exume did not recall telling anyone else about that incident. Exume agreed that he never told the Assistant Department Advocate about that incident. He did speak to Castro about it on the night it occurred and Castro told him that Alicea and the Respondent had spoken to him on his post. Exume believed this conversation occurred after their meeting with the PBA delegate.

Exume stated that the conversation with Alicea over the telephone had occurred on the same day as the meeting with the PBA delegate and that the meeting while on patrol had occurred a few days after that.

Exume denied meeting with Alicea, Castro and the Respondent as a group. He stated that they were brought individually into a room in front of YPD and IAB. The PBA delegate was there and stated that they would not make a statement without a lawyer to represent them.

Exume testified that when the sergeant arrived on the scene, both Alicea and the Respondent went over . . . was being attended to by two females who happened to be in the area. He said the ambulance was present but he could not recall if YPD was present. He did not see the Respondent speak with the sergeant.

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Police Officer Jeffrey Alicea were recalled by the Court

Police Officer Jordan Castro - Recalled

Upon questioning by the Court, Castro acknowledged that approximately a week after the incident, he received a phone call from Alicea, in which Alicea had a discussion with Castro regarding what to say about the incident. Castro further acknowledged that he and three other officers—Exume, Alicea and the Respondent—met with their union representative regarding the incident. In addition, Castro said there was a third time he spoke with Alicea regarding the incident. However, Castro said he could not recall the exact date but said it was within a week or two after the incident. Further, this third conversation was in person, while Castro was on-duty. Respondent was not present during this third conversation. Castro did not discuss the content of this meeting with anyone else.

Police Officer Jeffrey Alicea - Recalled

Alicea acknowledged that, a week after the incident, he spoke with Exume. He also acknowledged the meeting with the other officers and the union representative. He said that after the meeting with the union representative at the command, he did not have any further conversations with anyone else regarding the incident.

The Respondent's Case

The Respondent called Michael McGhee, the Respondent also testified in her own behalf

Police Officer Michael McGhee

McGhee testified that he arrived at the Rockin' Robin bar, by himself, at approximately 2 15 a m He stated that while at the bar, he had two beers and also met Police Officer Wimmer³ McGhee testified it is likely that he may have been the only black male at the bar He stated that he left the bar by himself, and when he got outside of the bar, he observed what he called a "scuffle" or a "confrontation " He added that Wimmer was in the middle of the confrontation McGhee said he saw about four or five people, two of whom were actually fighting He said he saw "pushing, shoving and someone pushing somebody against the car like choking them " Further McGhee said he saw Wimmer in the middle of the confrontation " pulling" someone Moreover, McGhee said that when he saw the confrontation, he went and tried pulling "one of the guys that was there" named Tully out of it but felt someone else pulling Tully from the other end Eventually he pulled Tully out but he and Tully both fell on a construction site

After he and Tully both fell to the ground, McGhee said, another guy comes charging, I don't know he comes charging at Tully Tully basically picks him up and slams him to the ground McGhee described this guy as a "big guy, like six something two hundred and something pounds Caucasian " McGhee further explained that Tully just physically grabbed him, like a "headlock" and slammed him to the ground McGhee said that he never struck the guy" who was now on the ground

³ Wimmer is no longer with the Department

McGhee said that after this incident, he got grabbed and thrown on the hood of a car by a police officer. McGhee said it only took a couple of seconds from the time he fell on the ground with Tully to the time he was grabbed by the police officer (identified as Exume). McGhee said he did not know where Tully was when he himself was grabbed. McGhee said that he did not struggle with Exume before Exume handcuffed him. McGhee stated that it was fairly dark out and that he had a jacket on. He denied having any conversations with Exume prior to being thrown on the car.

McGhee testified that after he was handcuffed, Exume and another officer were taking him across the street. McGhee said that it was during this point when he said he was "on the job" and that he was trying to break up the fight. McGhee said he was asked where his police ID card and his firearm were. McGhee said that he had his police ID card in his pocket but was not carrying his firearm. McGhee said the officer removed his (McGhee's) police ID card from his pocket began looking at it. McGhee added that the officer who took his police ID card was not Exume. When the officer returned with McGhee's ID card, the officer apologized, removed the handcuffs and let McGhee go. He said that a crowd began to gather and there were about ten or 12 people at this point.

McGhee said he did not recall when he first spoke to IAB or any other law enforcement agency, but said that it may have been some time in September.

On cross-examination, McGhee agreed that he did not hear the officer approach him because it was very noisy at the scene. McGhee stated that he was not carrying his firearm.

The Respondent

With regards to Case No. 85737/09, the Respondent admitted using a Department computer for personal use. She said she met a man online and was subsequently involved in a relationship with him. The Respondent stated that sometime after they began dating, this man became very possessive and jealous and that she felt threatened by him. The Respondent asserted that he called her constantly, started showing up at her mother's house, started showing up at her job and began following her.

The Respondent said she ran the man's name through the Mobile Digital Terminal which, in addition to other reports, would show whether or not a person has an order of protection against him. The Respondent then reported this search to her supervisor within a week. Her supervisor told the Respondent that she should report the search to IAB, which Respondent did. She added that she reported this incident to IAB before she was served with Case No. 83815/08.

With regards to - - - Respondent testified that on September 14, 2007, she was working a 2200 by 0635 tour, and partnered with Alicea. The Respondent said she picked up Castro and Exume while they were on meal.

The Respondent said she observed a fight break out in front of a bar on McLean Avenue. Her vehicle was flagged down by some people that were on the sidewalk. The Respondent stated that she did not know where Castro went but said that Alicea went to where McGhee was. The Respondent attended the injured person, Cummins, who was walking away and refusing any sort of aid that the Respondent was offering. The Respondent observed blood on the side of Cummins' face and above his forehead. The Respondent finally got Cummins to sit down on the sidewalk. She said at this point she

saw Exume holding McGhee against the hood of a livery cab and also heard McGhee say that he "had nothing to do with the fight

The Respondent said the next thing she noticed was Castro assisting Exume because Exume was having a hard time handcuffing McGhee. After McGhee was handcuffed, he was brought across the street and to the rear of the police car. The Respondent stayed with Cummins and Alicea called for an ambulance and YPD. The Respondent stated she could not hear the conversation between Castro, Exume and McGhee because it was too noisy. The Respondent was unaware that McGhee was a police officer at this point.

Kick and a sergeant arrive at the scene, followed by YPD. The Respondent testified that she stayed with Cummins until the ambulance arrived and then went back into her police car. She did not hear any dialogue between members of this Department and YPD.

The Respondent said that she overheard a conversation between Exume and Castro that McGhee was a police officer as they driving away from the scene. The Respondent testified that she did not know why McGhee was released, nor did she see who removed his handcuffs. She added that no one in the police car discussed why McGhee was released. The Respondent neither spoke to Cummins about pressing charges, nor did she know if Cummins made any complaints regarding the assault. Also the Respondent did not know if Cummins called IAB regarding this incident.

The Respondent did not recall what happened after they left the scene, but said that her tour was ending so she may have gone back to the precinct. The next time she heard of this incident was when her PBA delegate Peters, was trying to get in touch with

her Respondent added that, prior to being contacted by Peters, she did not have any conversations regarding the incident with Castro or Exume, and the only conversation she had with Alicea was when Alicea called her to tell her that Peters was looking for her because the incident was being investigated. In addition, Alicea said that the following day, Castro, Exume, and Peters were all going to meet in the muster room. The next day, the four officers--Exume, Castro, Alicea and the Respondent--met with Peters.

The Respondent stated that she was told not to speak to YPD unless she had a lawyer present. She added that no one was asked to create a false story regarding the incident. However, the Respondent did say "Exume stated that he was going to state that he just saw a driver's license and since I was never aware that he was a cop at that time at that particular incident when he said he saw the ID then I just agreed but not agreed to the whole situation just agreeing to the conversation that he's having."

Moreover, the Respondent said that Alicea said "we should all state that [McGhee] wasn't on the job, that we were unaware that he was on the job." The Respondent added that after that day she did not discuss the incident with any of the other officers. A few days after this meeting, the Respondent was placed on modified assignment and she was assigned an attorney--John Pappalardo.

The Respondent testified that after Pappalardo was assigned as her attorney, she spoke with the DA's office. The Respondent was neither arrested nor charged with any criminal offense up until this point. Respondent said that she gave the DA's office and YPD the same set of facts she gave to the Department. The Respondent was arrested by YPD a few months later and charged with two counts of Official Misconduct for "letting McGhee go." The Respondent took the advice of her counsel and pled guilty to

Disorderly Conduct The Respondent said she pled guilty to Disorderly Conduct because if she had not, the DA's office would have made an "example" out of her. Additionally she would have been blamed for the entire incident.

The Respondent said she was made aware that her plea was an "all or nothing plea" —all the defendants had to plead guilty or none of them would get it. The Respondent added that she did not lie to any of the law enforcement officers in Yonkers.

On cross-examination, the Respondent again stated that on the date of the incident, she believed she saw a "black man" (McGhee) strike another man but did not tell YPD this fact when YPD responded to the scene. Further, Respondent said she did not inform Cerny of this fact either.

The Respondent said she first learned that McGhee was a police officer when she returned to her police car. She stated that she did not ask anyone in the police car why McGhee was released. The Respondent stated that the first time she spoke with law enforcement regarding the facts of this incident was with the DA's office and YPD (an exact date was not provided, however it was stipulated later in the trial to be more than one month but less than two months after the incident).

The Respondent stated that she did not call IAB once she became aware that McGhee was a police officer because she did not know who to call. She further said, "the sergeant was there, I still didn't know all the facts, I didn't know if anyone else had made a call. I did not make a call, no."

The Respondent stated that when she returned to her police car on the night of the incident, either Castro or Exume may have said that McGhee had his firearm with him.

She denied having any private conversations with Exume regarding the incident. Her duty status was changed to modified before she spoke to the DA's office.

Upon questioning by the Court regarding Disciplinary Case No. 85737/09, the Respondent said she went to IAB regarding the unauthorized use of a Department computer because her sergeant told her that if she felt threatened, she should notify IAB.

FINDINGS AND ANALYSIS

There is no question that on September 14, 2007, the Respondent and Alicea were partners working in the Conditions Unit in the 47 Precinct. They were attired in a modified uniform consisting of cargo pants and a polo shirt and were in an unmarked vehicle. Alicea was the operator of the vehicle.

Exume and Castro were also officers from the 47 Precinct. They were in uniform on a foot post. At about 3:00 a.m., Alicea and the Respondent picked up Exume and Castro with the intent of driving them to a place where they could get a meal. At about 3:30 a.m., with Exume and Castro in the back seat, they drove west on McLean Avenue. That avenue forms the northern boundary of the Bronx and as they approached a bar on the Yonkers side of the street, they noticed a commotion.

different version of what occurred after the stop but the basic facts are not in dispute.

Alicea pulled the car over across the street from the bar (facing traffic) on the south side of the street. There was some kind of construction in the street. Alicea testified that he had seen a black male, later learned to be McGhee, strike a white male later learned to be Cummins. Alicea described it as a "sucker punch" which he defined

as hitting someone without that person seeing the blow coming. The Respondent also testified that she believed she saw McGhee hit Cummins. At the time of the stop, Exume was in the back seat sleeping. Castro was in the back seat as well but, because the rear windows were tinted and it was dark out, he said he saw nothing. He did, however, recall someone coming to the car asking for assistance. All of the officers exited the vehicle.

Cummins was on the ground and some of the officers went to him. Exume started questioning McGhee about the incident and found it necessary to handcuff him. Exume said this was for his safety. During the handcuffing, Castro joined (and, according to Castro, assisted) Exume. They then walked McGhee across the street to the police vehicle. As they were walking, McGhee stated that he was 'on the job'. He said his Department ID card was in his pocket. Exume reached in, obtained it and gave it to Castro. Castro compared the ID card to his own to make sure it was real and determined that it was. In the meantime, Alicea had learned from the man who may have been the bouncer that McGhee was an off-duty police officer. Exume also advised him of this fact. Alicea, who was the senior police officer on the scene, directed Exume to uncuff McGhee and let him leave the area, which Exume did.

Shortly thereafter, a sergeant from this Department, Cerny, arrived on the scene. The sergeant spoke with Alicea and was not told about McGhee. An ambulance came and the Respondent testified that she helped Cummins into the ambulance. YPD also arrived on the scene. They were not told about McGhee.

While there was no testimony about it at the trial, it is clear that YPD and IAB began an investigation regarding the involvement of a New York City police officer in

the assault on Cummins and the release of that officer by other New York City police officers

About a week after the incident, Alicea called Castro while he was off-duty. Essentially, Alicea told Castro that if anyone asked him about the incident he should not say that they knew that the man they released was a police officer. Alicea asked Castro to tell Exume the same thing, which Castro declined to do. Instead, Castro called Exume and told him that Alicea wanted to speak with him. Exume called Alicea and Alicea told him essentially what he had told Castro about denying knowledge of the fact that the man they had released was a police officer.

There was another conversation about the incident which occurred in or near the muster room of the 47 Precinct. Present at the meeting were Alicea, Exume, Castro, the Respondent and a union delegate, Peters. At the meeting, Peters told the others present that if they were questioned by IAB or YPD about the incident, their position was that they were not declining to cooperate but that they were not volunteering any statements at that time. They were also advised at the meeting that they were entitled to have an attorney present during any interview. While there were some differences in the recounting about how exactly this occurred, there was also, apparently, a second meeting with only the four officers. Whatever the specific circumstances, the Respondent acknowledged that she was present when Alicea discussed stating that they did not know that McGhee was a police officer and that she nodded in assent to that statement.

The Respondent was subsequently interviewed by a Westchester County District Attorney about the incident on McLean Avenue. The Respondent was truthful during

that interview Castro, Exume and Alicea were also interviewed by the DA and they were truthful about knowing at the time of the incident that McGhee was a police officer

McGhee was identified arrested and indicted in Westchester County on charges of felonious assault Alicea cooperated with the DA and testified for the prosecution at the trial McGhee was acquitted McGhee and Alicea who initially were co-

Respondents in this case pled guilty to Departmental charges at the outset of this trial Exume also pled guilty to Departmental charges prior to the commencement of this trial

Although the Respondent had stated that she had seen McGhee hit Cummins she was not called to testify at McGhee's criminal trial She was charged by the DA with Official Misconduct, as was Alicea Both the Respondent and Alicea were permitted to plead guilty to Disorderly Conduct in satisfaction of the criminal charges against each of them

As noted, there were some differences in the recounting of the above events Most of these were irrelevant to the issues before this Court in this proceeding⁴ There were, however, some distinctions in the testimony provided by Exume which have some relevance to the level of participation of the Respondent Exume specifically stated that the Respondent was in the vicinity of Alicea when he Exume, went over to Alicea and advised him that McGhee was a police officer Indeed, Exume seems to place the Respondent in the vicinity of Alicea throughout the incident on McLean Avenue

The Respondent claims that during most of that period of time she was with Cummins Indeed she testified that she was with him up to the time she helped him into the ambulance Exume specifically stated that the Respondent was not with Cummins

⁴ One notable example is a discrepancy between the testimony of Exume and Castro on the issue of whether McGhee was armed Exume said he checked and McGhee was not armed Castro said that he was certain that he felt a gun on McGhee when he helped handcuff him

and that he (Cummins) was being assisted by two women on the scene. Castro and Alicea basically said that they did not know where the Respondent was.

In his testimony, Exume also claimed that, in addition to the telephone call and the meeting, Alicea also approached him while he was on patrol and had another discussion with him in which Alicea told him not to mention that they knew the man they had let go was a police officer. Exume claimed that while the Respondent did not participate in that discussion, she was present when it occurred.

In assessing the truth of Exume's testimony against that of the Respondent on the issue of where she was, several factors should be considered. The first is that there is reason to believe that there were two women on the scene who were concerned about Cummins' well being. We know this because Castro refers to them in his testimony. However, the existence of two women concerned about Cummins does not mean that the Respondent was not with him during the incident. Certainly, one of the officers should have gone to speak with and attend to the injured person and we know that Castro, Exume and Alicea were otherwise engaged, so it makes sense that the Respondent should have stayed with the injured person.

More significantly, there seems to be some concern about the credibility of Exume's trial testimony. Exume acknowledged that he never told anyone prior to trial about his claim that Alicea and the Respondent came up to him while he was on patrol and that Alicea, in the Respondent's presence, again told him to lie about his knowledge of McGhee's status as a police officer. Given all of the interviews he has had on this subject, including with the Assistant Department Advocate prior to his testimony, this is incredible. His explanation, that no one ever asked him before, is equally incredible.

This would have been a separate act of serious misconduct and he certainly should have disclosed it every time he was questioned about the incident, rather than waiting nearly four years to bring it up

Exume also appears to have embellished his trial testimony about his culpability in the release of McGhee. At trial, he testified that when he went over to Alicea to tell him that McGhee was a police officer and he received the instruction to release McGhee, he said he inquired about whether anyone had identified McGhee as the person who hit Cummins. This trial testimony appears to have been the first time he made this claim, as it was developed on cross-examination that he did not make such a claim at his official Department interview.

Given the questions raised about Exume's testimony, it is difficult to accept it as the basis for any finding of fact. Additionally, as will be seen, his testimony does not really make a substantive difference when it comes to assessing the culpability of this Respondent. Exume's testimony, at best, has the Respondent as merely present when Alicea makes the decision to release McGhee, and Exume could not say with any certainty whether she heard the discussion he had with Alicea or not. Similarly, during the alleged visit to him while on patrol, she is merely present when Alicea importunes

Specification No. 1 is quite complex and lengthy. It consists of a main section and four sub-sections. D. The main section basically contains language found in the penal law regarding the crime of Official Misconduct and alleges that the Respondent, while aiding and abetting and acting in concert with another uniformed member of service known to the Department, and with intent to obtain a benefit or

deprive another person of a benefit committed an act related to her office but constituting an unauthorized exercise of her official functions, knowing that such act was unauthorized and knowingly refrained from performing a duty which was imposed upon her by law or was clearly inherent in the nature of her office "

The first subdivision, A, alleges that the Respondent, "upon learning that one or fight and the perpetrator of an alleged assault was an off-duty uniformed member of the Department, said Police Officer allowed permitted said member to leave scene of the incident without further questioning, investigation, or recording any identifying information about said uniformed member

In plain language, what this subdivision alleges is that the Respondent, knowing that McGhee was a police officer, let him leave the scene The Respondent testified that she did not know that McGhee was a member of the service when he was uncuffed and allowed to leave Her testimony is supported by Castro and Alicea Only Exume gave some testimony that might indicate that she knew that McGhee was a police officer before he was released Exume claimed that she was in the vicinity of Alicea when he, Exume, told Alicea that McGhee was an officer Even if one were to accept Exume's testimony, there is no evidence that the Respondent actually heard Exume give that information to Alicea As noted, this Court does not find Exume to be completely credible and accepts the Respondent s testimony that she was some distance away trying to deal with Cummins

There being no evidence that the Respondent knew that McGhee was a New York City police officer before Alicea ordered him uncuffed and released, or that she

participated in the decision to release McGhee, the Respondent is found Not Guilty of Subdivision A of Specification No 1

Subdivision B of Specification No 1 alleges that the Respondent, 'upon the arrival of the 47th Precinct Patrol Supervisor to the scene, did conceal her knowledge of said off-duty uniformed member and said member's status as an off-duty New York City Police Officer' Here again, there is no evidence, other than the possibility raised by Exume, that the Respondent knew who McGhee was and that he was a New York City police officer at the time the Patrol Supervisor Cerny, arrived on the scene Further, there is no evidence that she spoke with Cerny Neither Cerny nor his driver Kick, was called to testify in this case Alicea testified that he spoke with Cerny The Respondent testified that she was still dealing Exume's questionable testimony that she was even in the vicinity of the sergeant

There is, therefore, no credible evidence that the Respondent had the information it is claimed she 'concealed' at the relevant point in time, nor is there any evidence whatsoever that she misinformed or concealed anything from the sergeant The Respondent is found Not Guilty of Subdivision B of Specification No 1

Subdivision C of Specification No 1 alleges that the Respondent, subsequent to her departure from the scene, did fail and neglect to prepare any reports regarding the incident "

There is absolutely no evidence of any report the Respondent could have prepared or should have prepared and failed to prepare regarding the incident in question During the Department's closing argument, the Court asked the Assistant Department Advocate

what report this subdivision referred to. He responded that it could be referring to her Activity Log. The Respondent's Activity Log is not in evidence. It is, therefore, impossible for the Court to know what the Respondent wrote, if anything, about the incident on McLean Avenue. It is worth noting in this regard that the Respondent is not charged with failing to make Activity Log entries nor is she charged with making false Activity Log entries. The Advocate also mentioned an Aided Card, but there is no testimony or other evidence in the record to establish that she failed to complete that document either. In sum, no evidence has been presented to establish this allegation and, as a result, Subdivision C of Specification No. 1 is dismissed.

Subdivision D of Specification No. 1 alleges that the Respondent, "between about September 14, 2007 and about November 16, 2007, met with other uniformed members of the Department involved in the September 14, 2007 incident to discuss and to agree to create a false story about the incident, and to deny their knowledge of the uniformed member's participation in the fight."

There is no question that a meeting occurred a week or two after the McLean Avenue incident. The purpose of the meeting with a PBA delegate appears to have been to advise the Respondent and the other officers involved in the incident that they were entitled to be represented by an attorney at any interview. At some point, Alicea suggested that they deny that they knew that McGhee was a New York City police officer when he was released. The Respondent admitted that she nodded her agreement. Apparently, Castro and Exume did as well. Notwithstanding this purported agreement, there is no evidence that anyone followed through and indeed the evidence indicates that all of these officers, including the Respondent, gave truthful statements to the DA.

Nonetheless, it is clear that by nodding the Respondent was indicating her agreement with Alicea's plan to give a false account of the event

Subdivision D of Specification No. 1 states that that the Respondent agreed to "create a false story about the incident" and to deny knowledge of McGhee's status as a police officer. There is no indication that the falsity proposed was anything other than the denial of knowledge that McGhee was a police officer, so there are not two falsehoods but one.

More significant is the fact that the Respondent is charged not only with violations of the Patrol Guide, but with the crime of Official Misconduct. This then brings us back to the boilerplate statutory language from the penal law found at the beginning of Specification No. 1. In this introductory paragraph, it is alleged that the Respondent acted "with intent to obtain a benefit or deprive another person of a benefit, committed an act related to her office but constituting an unauthorized exercise of her official functions, knowing that such act was unauthorized and knowingly refrained from performing a duty which was imposed upon her by law or was clearly inherent in the nature of her office.

There is no evidence that a 'benefit' was derived or obtained by the Respondent or that anyone else was to be deprived of a benefit with regard to the conduct alleged in this subdivision. Nor is there any evidence that the Respondent's conduct, in this

- - - - - office

function or an act of refraining from performing an official duty.⁵ In sum, the conduct does not constitute this crime.

⁵ It could be argued that giving a truthful statement to IAB about a police response would be part of an official duty. However, in this instance, what occurred was a tentative agreement about what would be

It should also be noted that the Respondent was charged in criminal court with this crime and pled guilty to Disorderly Conduct. A plea to Disorderly Conduct, a violation and not a crime, does not constitute an admission in any way of the crime of Official Misconduct. Indeed, the elements are so vastly different that the only thing such a plea indicates is that it was a mechanism for disposing of the criminal case.

The Respondent is found Not Guilty of that aspect of this subdivision of this specification that alleges that the Respondent committed the crime of Official Misconduct.

The Respondent is also charged under Patrol Guide section 202-21 Page 1, Paragraphs 6 & 8. These two items deal with the requirement that officers report unusual occurrences to the patrol supervisor and that officers render police services as needed. The former has nothing to do with the conduct in this subdivision and was dealt with earlier. As to providing police services, the Respondent testified credibly that she assisted Cummins by helping him into the ambulance and before that, by keeping him from leaving the scene. In any event, there is nothing in this subdivision that refers to the failure to provide police service, so this section of the Patrol Guide is inapplicable.

Additionally, the Respondent is charged under Patrol Guide section 203-05, Page 1, Paragraph 4. This section deals with keeping appropriate records in an officer's Activity Log and is inapplicable to the conduct in this subdivision. As already noted, there is no evidence before this Court related to the Respondent's Activity Log. The charges with respect to these Patrol Guide sections have not been established and, to the extent that this section of this specification relates to them, the charge is dismissed.

said an anticipatory act not covered by this penal law section. Again, when the statement was made it was apparently truthful.

On the other hand the Respondent has admitted that she entered into a tacit agreement to go along with Alicea's plan to deny that he knew that McGhee was a New York City police officer at the time McGhee was released on McLean Avenue. Such conduct, an agreement to go along with a dishonest recitation of facts in a criminal investigation is clearly detrimental to the good order, efficiency and discipline of the Department. This is true even though no one followed through on the agreement. The Respondent is found Guilty of violation 1 Paragraph 5 with regard to Subdivision D of Specification No. 1.

It is obvious that the Respondent also had an obligation to immediately report the apparent agreement to her regarding knowledge of McGhee's status as a police officer to IAB. Specification No. 2 deals with a failure to report misconduct to IAB, but as will be seen, the language of that specification specifically focuses on the McLean Avenue incident. If, in fact, the Respondent failed to report that agreement to IAB that would be another act of misconduct. As will be seen, it is uncharged.

Specification No. 2 alleges that the Respondent on or about September 14, 2007 having become aware of an unusual occurrence involving uniformed members of the Department at about 0330 hours, while off-duty⁶, in or about the vicinity of McLean Avenue, Yonkers, New York, and having become aware of an allegation of corruption or serious misconduct against one or more uniformed members of the Department, wrongfully did fail and neglect to notify the Internal Affairs Bureau, Command Center, as required.

The failure to report referred to in this specification occurred on September 14, 2007 which is the day of the incident on McLean Avenue. The obligation to report this

⁶ This is how the charge is written. This conduct occurred while the Respondent was on-duty.

matter is less clear-cut than the need to report an agreement to give false statements to law enforcement. For one thing, the Respondent could have believed that Alicea used his discretion to let the man, who she believed she saw hit Cummins, go. However, the Respondent admits that, while she was in the car after the incident, she heard a conversation in which she learned that McGhee was a New York City police officer. Additionally, although she said that Cummins was a reluctant complainant, she did not testify that she conveyed that information to Alicea before Alicea authorized the release of McGhee. Further, it was determined that YPD had jurisdiction and, therefore, it should have been their decision as to what action to take regarding McGhee. Putting all the pieces together, the Respondent should have realized in the car, when she learned that Alicea had released McGhee, that Alicea had improperly released McGhee and that he did so as a favor to McGhee because he was a New York City police officer. That knowledge should have triggered a report to IAB about the conduct of both McGhee, as the alleged perpetrator of an assault, and of Alicea, because of his improper release of McGhee. The Respondent is found Guilty of Specification No. 2.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). The Respondent was appointed to the Department on July 22, 2002. Information from her personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Respondent has been found Guilty of tacitly agreeing to support Alicea in his plan to give false information to law enforcement investigators about his knowledge that McGhee was a New York City police officer at the time he ordered his release on McLean Avenue on September 14, 2007. Even though this plan was never carried out, participating in any way in such an agreement is serious misconduct. The Respondent has also been found Guilty of failing to report the misconduct of Alicea and McGhee. Here again, the Respondent is guilty of serious misconduct. Although the Respondent has since qualified her statement, at the time she said she saw McGhee hit Cummins, she also knew Cummins had sustained injuries. When she learned in the car leaving the scene that McGhee was a New York City police officer, she should have realized that a report to IAB regarding McGhee was mandatory. She also, at that point, should have realized that Alicea had done a favor for a fellow officer and that needed to be reported to IAB as well.

The Department has recommended that the Respondent be dismissed from the Department. In making his argument for dismissal, the Advocate noted that Alicea had entered a plea which included separation from the Department. The Advocate argued that while Alicea's conduct was more serious than this Respondent's, this Respondent's conduct is still serious enough to merit dismissal.

The Court agrees with the Department in that the conduct of this Respondent is less serious than that of Alicea, but disagrees with its assertion that her conduct requires her dismissal from the Department. Alicea was the main mover in the misconduct that was central to these charges. He took it upon himself to release McGhee. He made the report to the patrol supervisor and chose to leave out the critical information about

McGhee having been there and having been released. He also spoke with YPD and again omitted any reference to McGhee. There is no evidence that the Respondent was a participant in any of these acts. Alicea also spearheaded the effort to have others lie about McGhee as evinced by his call to Castro and his discussion with Exume. This Respondent's conduct is no different than that of Castro or Exume in regard to that purported false statement. Nor is there any other evidence that any other misconduct she committed exceeded their misconduct. Neither of them is being separated from the Department.⁷

The Respondent certainly failed to come forward and report the misconduct but she was not part of the root cause of the misconduct. A significant penalty is appropriate, indeed one that is commensurate with the penalty imposed on Exume, whose misconduct was similar. The Court recommends that the Respondent be DISMISSED from the New York City Police Department, but that her dismissal be held in abeyance for a period of one year pursuant to Section 14-115 (d) of the Administrative Code, during which time she remains on the force at the Police Commissioner's discretion and may be terminated at anytime without further proceedings. Further, this Court recommends that the Respondent forfeit 31 days previously served on suspension.

APPROVED

NOV 08 2011
RAYMOND W. KELLY
POLICE COMMISSIONER

Respectfully submitted,

Caropkin
Deputy Commissioner - Trials

⁷ Exume pled guilty to the charges against him and, at the time of this writing, the recommended penalty of the loss of 30 vacation days and dismissal probation was pending review by the Police Commissioner. There is no record of any disciplinary action being taken with regard to Castro.

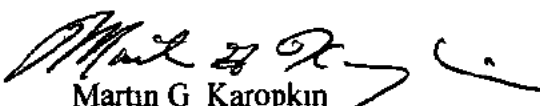
POLICE DEPARTMENT
CITY OF NEW YORK

From Deputy Commissioner – Trials
To Police Commissioner
Subject CONFIDENTIAL MEMORANDUM
POLICE OFFICER STELLA IBANEZ
TAX REGISTRY NO 931943
DISCIPLINARY CASE NOS 83815/08 & 85737/09

In 2009 and 2010, the Respondent received an overall rating of 4.0 Highly
Competent on her annual performance evaluation. She was rated 3.5 'Highly
Competent/Competent' in 2008. [REDACTED]

[REDACTED] The Respondent has no prior formal disciplinary
record.

For your consideration


Martin G. Karopkin
Deputy Commissioner – Trials